

nation. See a president hereof before the coronation of king R. 2. John duke of Lancaster then steward of England, (who in claymes before him was stiled *tres honorable seignior le roy de Castile et Leon, et seneschal D'anglitterre*) and held his court in *Alba Aula apud Westm. die Jovis proxime ante coronationem. Quæ quidem coronatio habita et solemnizata fuit die Jovis sequente, viz. 16 Julii anno 1 R. 2.*

The first that was created *hac vice* for the solemnization of the coronation of H. 4. was Thomas his second son. ⁱ And upon the arraignment of John Holland earl of Huntingdon, the first that was created steward of England *hac vice*, was Edward earl of Devon.

Rot. parl. 37 H. 6. nu. 49. Thomas Courtney earl of Devon was arraigned of high treason before Humphrey duke of Glouc. *hac vice* steward of England, and acquitted. And so was ^k the lord Dacres of the north arraigned of high treason before Thomas duke of Norff. *hac vice* steward of England and acquitted by 20 peers.

When he sitteth by force of his office he sitteth under a cloth of estate, and such as direct their speech unto him, say, Please your grace my lord high steward of England. The stile of the said John of Gaunt was, *Johannes filius regis Angliæ, rex Legionis et Castellæ, dux Aquitaniæ et Lancastriæ, comes Derbiæ, Lincolnæ, et Leicestriæ, seneschallus Angliæ.* And in respect his power before it was limited was so transcendent, I finde no mention made of this great officer in any of our ancient authors, the Mirror, Bracton, Britton, or Fleta. It seemeth they liked not to treat of his authority. Neither do I finde him in any act of parliament, nor in any book case before 1 H. 4. and very few since: which hath caused me to be the longer in another place to set forth his authority and due proceeding upon the arraignment of a peer of the parliament, by judicial record and resolution of the judges, agreeable with constant experience.

For the etymologie and signification of (*seneschallus*) see the first part of the Institutes: and though it hath severall derivations, yet as being applied to England, it is properly derived from *sen*, that is justice, and *schale*, that is, governour or officer, that is, *præfectus seu officarius justitiæ.* And this agreeth well with his authority and duty to proceed (as hath been said) *secundum leges et consuetudines Angliæ.*

It is to be observed, that as the peers of the realm that be triors or peers, are not sworne, so the lord steward being judge, &c. is not sworn: yet ought he according to his letters patents to proceed *secundum legem et consuetudinem Angliæ.*

ⁱ V. 1 H. 4. fo. 1. Therefore Tho. Walsingham, p. 363. and others who affirme that he was beheaded at Pleshy in Essex by the commons, do erre.

^k Term. Pasch. 26 H. 8. of justice Spilman's report.

See the third part of the Institutes, cap. Treason.

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First part of the Institutes, sect. 78.